326 Temporary

Executive Order

REJECTING THE BID OF R. & H. SIMON COMPANY FOR CERTAIN SHARES OF THE CAPITAL STOCK OF R. & H. SIMON COMPANY, A NEW JERSEY CORPORATION, OFFERED FOR SALE AT PUBLIC AUCTION ON JUNE 4, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by "An Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriation to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order:

WHEREAS, the Alien Property Custodian offered for sale at auction at Union Hill, New Jersey at 11 o'clock A. M. on the 4th day of June, 1919, certain shares of the capital stock of R. & H. Simon Company, a New Jersey corporation, said shares being described as follows:

3,500 shares of the common capital stock, out of a total issue of 19,350 shares of the common stock, and 1,000 shares of the preferred capital stock, out of a total issue of 1,000 shares of the preferred stock of R. & H. Simon Company, of the par value of $100 each.

AND WHEREAS, the highest bid received for said stock was one hundred twenty seven thousand five hundred ($127,500.) dollars for the 3,500 shares of common and 1,000 shares of preferred stock offered, which bid was made by R. & H. Simon Company.

The Alien Property Custodian is hereby authorized and shall have the right to reject all bids made at said sale, including the bid of the said R. & H. Simon Company, and to resell such property at public sale.

My reason for the foregoing determination and order is that the above stated price bid for the said property is inadequate and not the fair value thereof.

Done in the District of Columbia this 29th day of April, in the year of our Lord one thousand nine hundred and twenty, and in the year of the independence of the United States, the one hundred forty-fourth.

WOODROW WILSON

[No. 3266.]